

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SOUTHERN INTERNATIONAL CO., LTD., *Complainant*

v.

DAYNAMEZ GROUP OF COMPANIES LLC, *Respondent*.

DOCKET NO. 25-24

Served August 4, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ON COMPLAINANT’S MOTION FOR LEAVE TO FILE REPLY

This matter came on for consideration of: Complainant Southern International Co., Ltd.’s Motion for Leave to File A Limited Reply to Respondent’s July 20, 2026 Response to Motion for Extension of Time to Respond to the Motion to Compel filed July 25, 2026 (Dkt. 46); and Respondent’s Response to Complainant’s Motion to File a Reply filed August 3, 2026. For the reasons set forth below, the motion is **GRANTED**. Complainant Southern International Co., Ltd.’s Limited Reply in Support of Motion to Compel Verified Supplemental Discovery Responses and Complete Document Production attached as Exhibit A is deemed to have been filed as of the date of this order, and the Office of the Secretary is requested to file the reply on the docket.

On July 5, 2026, Complainant Southern International Co., Ltd.’s Motion to Compel Verified Supplemental Discovery Responses and Complete Document Production was filed. (Dkt. 41.)

On July 20, 2026, Respondent filed Respondent Daynamez Group of Companies LLC’s Response to Motion to Compel Including Consolidated, Signed and Verified Supplemental Answers to Complainant’ First Set of Interrogatories (Nos. 1-18), Amended Response to Request for Admission No. 12, and Supplemental Responses to Requests for Production. (Dkt. 45.) The response was timely filed pursuant to the order granting an extension dated July 16, 2026. (Dkt. 44.)

Complainant now seeks leave to reply to Respondent’s response to the motion to compel. Complainant attached its proposed reply as Exhibit A to its motion, and requests that it be deemed to have been filed as of the date of this order.

Respondent opposes the motion on the grounds of cost, delay, and failure to verbally confer in advance of the motion. In the alternative, Respondent requests that it be permitted to respond to the reply.

Pursuant to 46 C.F.R. § 502.71(c), replies are generally not permitted. It states in pertinent part:

The moving party may not file a reply to a non-dispositive motion unless requested by the Commission or presiding officer, or upon a showing of extraordinary circumstances.

Complainant argues that extraordinary circumstances exist from a procedural perspective because Respondent did not merely oppose the motion to compel but rather materially altered the record by contemporaneously serving discovery responses to interrogatories, supplemental responses to request for production, an amended response to a request for admission, additional financial schedules, and documentary exhibits. Complainant argues that a reply is necessary because it did not have the ability to address the sufficiency of these subsequently filed discovery responses in its motion.

Complainant disputes Respondent's contention in its response that its recent discovery responses cure the deficiencies set forth in the motion to compel and render it moot. Complainant states that its reply does not seek a second bite at the apple, but rather is limited in scope to address the nature and sufficiency of Respondent's purported cure. Complainant argues that a reply is necessary so it can address the extent to which the recently served discovery responses have resolved certain deficiencies in the original responses and the extent to which Respondent's discovery responses continue to be deficient.

Because Complainant would not have the opportunity to address the sufficiency of the recently served discovery responses absent a reply, I find that extraordinary circumstances exist to grant leave for Complainant to file a reply. Doing so will also provide me with the information necessary to make a determination as to whether or not Respondent's discovery responses remain deficient.

Complainant argues that granting the motion will not prejudice Respondent, and I find that no prejudice would result.

Respondent's arguments in its opposition are not persuasive. The record does not support a finding that unusual cost or delay has occurred in this proceeding. With respect to the argument that no verbal conferral occurred in advance of filing the motion, the motion affirmatively states that Respondent opposes the relief requested and attaches as Exhibit B an email exchange between the parties on July 23 and 25, 2026. The email exchange shows that Complainant advised Respondent of its plan to file a limited reply, described the purpose for doing so, and requested a response by July 24, 2026. It also shows that Respondent's counsel replied: "My client does not agree to your filing a Reply."

46 C.F.R. § 502.71(a) provides in pertinent part that "the parties to attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought, and if there is opposition, to narrow the areas of disagreement." The email exchange attached as Exhibit B shows that Complainant satisfied this requirement.

Respondent's request to file a sur-reply is not well taken. Granting leave to file a response to a reply is generally disfavored and no extraordinary factual predicate has been presented suggesting that such relief is warranted in this case.

For these reasons,

Complainant's motion is **GRANTED**.

Complainant Southern International Co., Ltd.'s Limited Reply in Support of Motion to Compel Verified Supplemental Discovery Responses and Complete Document Production attached as Exhibit A is deemed to have been filed as of the date of this order.

The Office of the Secretary is requested to file Complainant's reply, a copy of which is attached as Exhibit A to Complainant's motion for leave to file a reply, on the docket and reflect that it was filed on the date of this order.

MARY A. HERVEY
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HERVEY -S
Date: 2026.08.04 11:40:50 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge